

patents in the same time period. Roughly about a million patents are filed every year around the world.

Key drivers

As technology progresses worldwide, there is an increasing need for patents to be filed for new developments. The opportunities in India are increasing because of the amount of work being outsourced to India. The task of identifying monetisable technologies, comparing it with existing technologies and then following it up with communications with the patent office is a huge and expensive task. It therefore makes sense to outsource such processes to India where there is a large pool of engineering graduates that can consider this as a career option.

In India, the career of being an IPR professional is very young. One of the first few IPR violations comes in the form of the Novartis-Ranbaxy case, which was reported last year. Ashish Gupta, the COO of Evalueserve believes that once the verdict is passed on that, we will see the tipping point for IPR law as a career path. Once that happens and the value of the IPR Specialist is realised, more Indians will want to get into this field.

Nikhil Sharma has been in this industry for nearly four years. He recalls how back in 2005 there was a reform in the Indian Patent Act which allowed the Indian Patent Office to grant process patents as well. Till then it was limited to product patents. Then in 2006, a couple of IP cases were registered in Indian courts. These were indicators that there was an increase in consciousness about the importance of IPR. This helped him decide that this was a promising career to look at.

Possible career paths

Dividing IPR Management across industries would be as follows:

- IT and Telecom Technology
- Pharmaceutical and Biotechnology
- Energy, Oil and Gas Technology

Of these three options, currently the most business is focussed on IT, Telecom, Pharmaceutical and Biotechnology. However industry players believe that the next 20 years will belong to IPR Management to the Energy field. There are many other forms of patents based on industry.

Within each of these paths, it can further be divided into the following roles:

- Commercialisation analysis
- Identifying useless IPR
- Determining the royalties
- Market dynamics of a technology sub-segment

The Role

The role of an IPR specialist is to help the inventor gain patents on his invention. The inventor can be a large corporation, a small business a team of scientists and even a lone inventor that's working out of his garage. The first step taken by the IPR specialist is to understand the invention itself. He then researches whether such a technology already exists in some form. After this he goes about understanding how best the invention can be patented so that maximum monetisation is achieved. The final step is to file the patent with the Patent Office.

Face-2-Face with practitioner

“My role is to help clients come up with a better, efficient and monetarily benefiting IP strategy for their inventions. Come and test the waters of this field. There is never a dull moment around here,”

Nikhil Sharma
Group Manager
IP Division, Evalueserve